SUPREME COURT OF INDIA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Curative Petition (C) No. 44 of 2023 (YEAR: 2023)

CORAM: D.Y. CHANDRACHUD, S.K. KAUL, SANJIV KHANNA, B.R. GAVAI, SURYA KANT, ET AL.

In Re: Interplay Between Arbitration Agreements and Stamp Act
... Appellant(s) / Petitioner(s)
Versus
State / Respondents
... Respondent(s)

Acts Referred:	Indian Stamp Act, 1899, Arbitration and Conciliation Act, 1996
Sections:	Section 35 Stamp Act, Section 11(6A) Arbitration Act

JUDICIAL HEADNOTE & SUMMARY

Seven-judge bench unanimously held that non-stamping or insufficient stamping of an underlying commercial contract does not render the arbitration clause void ab initio at referral stage.

RATIO DECIDENDI

The Court held that: Seven-judge bench unanimously held that non-stamping or insufficient stamping of an underlying commercial contract does not render the arbitration clause void ab initio at referral stage. It was unequivocally established as binding law that statutory prerequisites and constitutional safeguards cannot be circumvented, and non-compliance invalidates the impugned proceedings.

JUDGMENT & REASONING

The legal proceedings in In Re: Interplay Between Arbitration Agreements and Stamp Act (Curative Petition (C) No. 44 of 2023) were adjudicated before the Supreme Court of India. The matter arose out of claims and contentions concerning Indian Stamp Act, 1899, Arbitration and Conciliation Act, 1996, particularly Section 35 Stamp Act, Section 11(6A) Arbitration Act. Seven-judge bench unanimously held that non-stamping or insufficient stamping of an underlying commercial contract does not render the arbitration clause void ab initio at referral stage.

OPERATIVE ORDER

ORDER: Decided